

CCRB INVESTIGATIVE RECOMMENDATION

Investigator: Nicholas Bongiovanni	Team: Team # 5	CCRB Case #: 201311461	☐ Force	☐ Discourt.	☐ U.S.
			☒ Abuse	☐ O.L.	☐ Injury
Incident Date(s) Saturday, 11/30/2013 10:45 AM	Location of Incident: North Conduit Avenue in between 150th Street and Baisley Boulevard South		18 Mo. SOL 5/30/2015	Precinct: 113	
Date/Time CV Reported Fri, 12/06/2013 2:23 PM	CV Reported At: CCRB	How CV Reported: Phone	Date/Time Received at CCRB Fri, 12/06/2013 2:23 PM		

Complainant/Victim	Type	Home Address

Witness(es)	Home Address

Subject Officer(s)	Shield	TaxID	Command
1. POM Jason Bernfeld	25390	950074	113 PCT

Witness Officer(s)	Shield No	Tax No	Cmd Name
1. POM Scott Blackburn	10437	941432	113 PCT
2. POM Ryan Storz	00524	949699	113 PCT

Officer(s)	Allegation	Investigator Recommendation
A . POM Jason Bernfeld	Abuse: PO Jason Bernfeld searched the car in which § 87(2)(b) was an occupant.	A . Substantiated

Case Summary

On December 6, 2013, § 87(2)(b) called the CCRB to report the following complaint (encl. 3A-3B). On November 30, 2013, § 87(2)(b) was driving his car when he was stopped by PO Jason Bernfeld and PO Ryan Storz, of the 113th Precinct, on North Conduit Avenue in between 150th Street and Baisley Boulevard South in Queens. The following allegation resulted:

- **Allegation A- Abuse of Authority: PO Jason Bernfeld searched the car in which § 87(2)(b) was an occupant.**

§ 87(2)(g)

it is recommended that Allegation A be **substantiated**.

Results of Investigation

Civilian Statements

Complainant/Victim: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was a § 87(2)(b)-old black male with black hair and brown eyes who § 87(2)(b)*
- § 87(2)(b)

CCRB Statements

§ 87(2)(b) provided telephone statements on December 6, 2013 (encl. 3B) and December 12, 2013 (encl. 4A). § 87(2)(b) was interviewed at the CCRB on December 30, 2013 (encl. 5A-5B). § 87(2)(g)

On November 30, 2013, at approximately 10:45 a.m., § 87(2)(b) was driving his grey 2006 Infiniti M36 on North Conduit Avenue in between 150th Street and Baisley Boulevard South in Queens. § 87(2)(b) was driving with his friend, § 87(2)(b) (last name identified via investigation as § 87(2)(b) who sat in the front passenger seat of his car.

§ 87(2)(b) was pulled over by two uniformed male police officers, identified via investigation as PO Jason Bernfeld and PO Ryan Storz, from the 113th Precinct, in a marked police car. § 87(2)(b) described PO Bernfeld as a 35-year-old white male, with short black hair, 5'6"-5'7" tall and 160-170 lbs. § 87(2)(b) described PO Storz as a 32-35-year-old white male, with short black hair, 5'8"-5'9" tall and 180 lbs.

PO Bernfeld exited the police car and approached § 87(2)(b). § 87(2)(b) did not specify where PO Storz was at this time. PO Bernfeld told § 87(2)(b) that he was pulled over due to his window tints. PO Bernfeld used a device to test the tint level of the driver's window. § 87(2)(b) believed that the device read his driver's window to be 17% transparent.

PO Bernfeld then asked § 87(2)(b) for his driver's license, insurance card and registration. § 87(2)(b) provided these documents to PO Bernfeld. PO Bernfeld went back to his patrol car with § 87(2)(b)'s documents. About 15 minutes later, PO Bernfeld returned to § 87(2)(b)'s car, and asked § 87(2)(b) to exit and go to the rear of his car. § 87(2)(b) complied. PO Bernfeld searched § 87(2)(b) handcuffed him and told him that he was under arrest for § 87(2)(b). PO Storz stood next to PO Bernfeld at this point. PO Bernfeld and PO Storz escorted § 87(2)(b) to the backseat of the police car.

§ 87(2)(b) told PO Bernfeld that § 87(2)(b) had a license and she can drive his car back to his house. PO Bernfeld approached § 87(2)(b) while PO Storz remained standing next to § 87(2)(b). PO Bernfeld told § 87(2)(b) that she can drive § 87(2)(b)'s car. § 87(2)(b) exited § 87(2)(b)'s car and stood next to the car. PO Bernfeld entered the front and rear doors on the driver's side of § 87(2)(b)'s car, which were already open, and "searched" the car. § 87(2)(b) could not see the specific areas that PO Bernfeld searched from where he sat, but observed PO Bernfeld moving his hands inside his car and appeared as if he moved items inside his car.

§ 87(2)(b) later learned from § 87(2)(b) that PO Bernfeld went inside either the glove compartment or the arm rest. As a result of the search, PO Bernfeld recovered § 87(2)(b)'s knife that he kept in either the glove compartment or the arm rest. PO Bernfeld exited § 87(2)(b)'s car with the knife, approached § 87(2)(b) and asked him what the knife was for. § 87(2)(b) told PO Bernfeld that he is a construction worker and used the knife for work. PO Bernfeld returned the knife to § 87(2)(b). § 87(2)(b) then took possession of § 87(2)(b)'s car.

PO Bernfeld and PO Storz transported § 87(2)(b) to the stationhouse. § 87(2)(b) was not issued a summons or charged for his tinted windows.

Witness: § 87(2)(b)

- *At the time of the incident, § 87(2)(b) was a § 87(2)(b)-old white female with blonde hair and blue eyes, who § 87(2)(b)*
- *§ 87(2)(b) is a friend of § 87(2)(b) § 87(2)(b)*

CCRB Statements

§ 87(2)(b) provided a telephone statement on January 14, 2014 (encl. 6A). § 87(2)(b) was interviewed at the CCRB on January 27, 2014 (encl. 7A-7B). § 87(2)(g)

§ 87(2)(b) described PO Bernfeld as a white male, with an average build, with lighter colored hair than PO Storz. § 87(2)(b) described PO Storz as a white male, with an average build and darker hair than PO Bernfeld. § 87(2)(b) could not provide any additional descriptions for either officer.

§ 87(2)(b) was not sure who handcuffed § 87(2)(b) although in her telephone statement, she stated that PO Bernfeld did. After § 87(2)(b) was escorted to the police car by PO Bernfeld and PO Storz, § 87(2)(b) believed that it was PO Storz who returned to § 87(2)(b)'s car. § 87(2)(b) believed that PO Storz opened the driver's door, and handed over § 87(2)(b)'s Bluetooth headset and wallet to her. PO Storz then stated to § 87(2)(b) that he was "going to look through the car to make sure there is nothing in here that does not belong in here."

PO Storz opened the rear driver's side door and leaned inside the car. PO Storz lifted a jacket that was on the rear passenger's side seat. PO Storz opened a plastic shopping bag that was in the middle of the back seat and looked inside the bag. PO Storz moved a mop and other cleaning products that were on the floor near the backseat. PO Storz went back to the driver's door, opened the arm rest and took out a knife that was inside of a fabric holster. PO Storz approached the

police car for a brief moment and then returned to the driver's door of § 87(2)(b)'s car. PO Storz handed the knife to § 87(2)(b) and told her to put it in a safe place.

PO Storz then asked § 87(2)(b) if she had a license and if she can drive § 87(2)(b)'s car. § 87(2)(b) stated that she did and she can take the car. § 87(2)(b) then exited the car to go around to the driver's door. While § 87(2)(b) stood outside, PO Storz leaned inside the driver's entrance of § 87(2)(b)'s car with one of his hands underneath the driver's seat. § 87(2)(b) then took possession of § 87(2)(b)'s car.

Subject Officer: JASON BERNFELD

- *At the time of the incident, PO Bernfeld was a § 87(2)(b)-old white male with brown hair and brown eyes who § 87(2)(b)*
- *On November 30, 2013, PO Bernfeld was assigned to patrol sectors E, F and J with PO Storz from 7:00 a.m. to 3:00 p.m. PO Bernfeld was dressed in uniform and assigned to a marked RMP.*

Memo Book

On November 30, 2013, at 10:15 a.m., PO Bernfeld stopped § 87(2)(b) in his vehicle at 150th Street and North Conduit Avenue in Queens. At 10:25 a.m., § 87(2)(b) was arrested. § 87(2)(b)'s D.O.B is § 87(2)(b). PO Bernfeld conducted a quick search of the lungeable, grabbable area. At 10:31 a.m., PO Bernfeld arrived at the stationhouse. At 10:35 a.m., the arrest was assigned to PO Blackburn (encl. 8A-8C).

CCRB Statement

On January 29, 2014, PO Bernfeld was interviewed at the CCRB (encl. 9A-9C).

On November 30, 2013, PO Bernfeld believed that he was the operator of the patrol car. At 10:15 a.m., PO Bernfeld observed a vehicle with excessively dark tinted windows and stopped the vehicle. PO Bernfeld approached the driver, § 87(2)(b) and asked him for his license, registration and insurance. PO Storz approached the front passenger side of § 87(2)(b)'s car where a female individual, identified via investigation as § 87(2)(b) sat in the front passenger seat. § 87(2)(b) provided the requested documents to PO Bernfeld. PO Bernfeld tested the tinted windows of § 87(2)(b)'s car with a Tint Meter 100. The results read that the window was between 25-30% transparent. PO Bernfeld went back to his patrol car with § 87(2)(b)'s documents.

PO Bernfeld ran a check on § 87(2)(b)'s license and determined that his license was suspended. PO Bernfeld returned to § 87(2)(b) and informed him that his license was suspended. PO Bernfeld told § 87(2)(b) to exit the car because he was under arrest. § 87(2)(b) complied. PO Bernfeld placed § 87(2)(b) in handcuffs, searched him and then escorted him to the patrol car. PO Bernfeld did not recall where PO Storz was at this time.

PO Bernfeld returned to § 87(2)(b)'s vehicle. PO Bernfeld thought that he was going to have to take § 87(2)(b)'s car to the precinct and wanted to check § 87(2)(b)'s car for any contraband. PO Bernfeld believed that PO Storz was with § 87(2)(b) near the patrol car at this time. PO Bernfeld only searched the center console and the floor board by the driver's seat of § 87(2)(b)'s car. PO Bernfeld found a knife in the center console of § 87(2)(b)'s vehicle. PO Bernfeld did not recall lifting a jacket or opening a plastic shopping bag on the backseat. PO Bernfeld did not recall seeing cleaning supplies in § 87(2)(b)'s car. At some point during his

search, PO Bernfeld reached under the driver's seat of § 87(2)(b)'s car with his hands. There was nothing found under the driver's seat. PO Bernfeld took the knife that he found in the center console and brought it to the patrol car and showed § 87(2)(b). PO Bernfeld asked § 87(2)(b) why he had the knife. § 87(2)(b) stated that the knife was for work and it was not illegal for him to have it. PO Bernfeld understood that the knife was for work and said it was not a problem. PO Bernfeld stated that he did not want to "screw" § 87(2)(b) with additional charges so he returned the knife to § 87(2)(b)'s car. PO Bernfeld did not recall where he returned the knife to.

After he returned the knife to § 87(2)(b)'s car, PO Bernfeld asked § 87(2)(b) if she was able to take § 87(2)(b)'s car. § 87(2)(b) stated that she would take the car if § 87(2)(b) was okay with it. PO Bernfeld approached § 87(2)(b) and asked him if he was okay with § 87(2)(b) taking his car. § 87(2)(b) said that was okay. PO Bernfeld asked § 87(2)(b) for her driver's license. § 87(2)(b) showed PO Bernfeld her driver's license. PO Bernfeld verified that her license was valid and the car was handed over to her. PO Bernfeld and PO Storz then transported § 87(2)(b) to the stationhouse.

Once at the stationhouse, PO Blackburn was assigned to process § 87(2)(b)'s arrest. PO Bernfeld stated that § 87(2)(b) did not receive a summons for his window tints because it was part of the arrest. PO Bernfeld believed that he provided the tint results to PO Blackburn to include in the arrest report. PO Bernfeld stated that it was PO Blackburn's responsibility to charge § 87(2)(b) with VTL 375 for excessive window tints on the arrest report. After reviewing § 87(2)(b)'s arrest report which did not indicate any charges for tinted windows but included the tint results (29%) in the arrest narrative, PO Bernfeld stated that PO Blackburn "probably neglected to charge § 87(2)(b) with the tints." PO Bernfeld explained that the arrest report indicated that he entered the report because he was logged in when PO Blackburn processed the arrest, but PO Bernfeld had gone back out on patrol and did not process the arrest.

Witness Officer: PO RYAN STORZ

- *At the time of the incident, PO Storz was a § 87(2)(b)-old white male with brown hair and blue eyes who § 87(2)(b)*
- *On November 30, 2013, PO Storz was assigned to patrol sectors E, F and J with PO Bernfeld from 7:05 a.m. to 3:40 p.m. PO Storz was dressed in uniform and assigned to a marked RMP.*

Memo Book

On November 30, 2013, at 10:15 a.m., PO Storz conducted a car stop on North Conduit Avenue and 150th Street in Queens. At 10:25 a.m. there was an arrest made by PO Bernfeld in regards to an individual § 87(2)(b). At 10:35 a.m. PO Storz arrived at the 113th Precinct stationhouse. At 10:50 a.m., PO Blackburn took the arrest (encl. 12A-12C).

CCRB Statement

On February 7, 2014, PO Storz was interviewed at the CCRB (encl. 13A-13C). § 87(2)(g)

After running § 87(2)(b)'s license, both PO Storz and PO Bernfeld approached § 87(2)(b) and informed him of his license being suspended. When PO Storz escorted § 87(2)(b) to the backseat of the patrol car, PO Bernfeld approached § 87(2)(b). PO Storz remained standing

next to § 87(2)(b) PO Storz did not hear the extent of the verbal interaction between PO Bernfeld and § 87(2)(b)

PO Storz believed that PO Bernfeld entered § 87(2)(b)'s car through the front passenger's door in order to avoid traffic on the opposite side. PO Bernfeld returned to the police car with a knife and informed PO Storz that he observed the knife in the "lungeable" area of § 87(2)(b)'s driver's seat. PO Bernfeld did not specify the specific location of where he found the knife. PO Storz did not know the specific location PO Bernfeld recovered the knife. PO Storz did not observe PO Bernfeld open either the glove compartment or center console. Neither PO Storz nor PO Bernfeld reached under § 87(2)(b)'s driver's seat at any point.

Witness Officer: SCOTT BLACKBURN

- *At the time of the incident, PO Blackburn was § 87(2)(b)-old a white male with brown hair and black eyes who § 87(2)(b)*
- *On November 30, 2013, PO Blackburn was assigned to patrol sector H with PO Ferrari from 7:05 a.m. to 3:40 p.m. PO Blackburn was dressed in uniform and assigned to a marked RMP.*

Memo Book

On November 30, 2013, at 11:00 a.m., PO Blackburn was assigned to process the arrest of § 87(2)(b) D.O.B. is § 87(2)(b) was charged with § 87(2)(b) Arrest # § 87(2)(b) § 87(2)(b), and Voucher # § 87(2)(b) for cell phone (encl. 10A-10C).

Arrest Report

The narrative of § 87(2)(b)'s arrest report for November 30, 2013, indicates that § 87(2)(a) 160.50
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

CCRB Statement

On January 29, 2014, PO Blackburn was interviewed at the CCRB (encl. 11A-11B).

On November 30, 2013, at approximately 11:00 a.m., PO Blackburn processed § 87(2)(b)'s arrest inside the stationhouse. PO Blackburn was informed by PO Bernfeld that § 87(2)(b) had excessively dark tinted windows. To PO Blackburn's knowledge, § 87(2)(b) was not issued a summons or charged for his tinted windows, and PO Blackburn did not specify why not.

Other Evidence

• **Department of Motor Vehicles**

- § 87(2)(b)
§ 87(2)(b)
§ 87(2)(b)

Arrest for Incident and Disposition

§ 87(2)(g)

§ 87(2)(g)

Investigative Findings and Recommendations

Allegation A- Abuse of Authority: PO Jason Bernfeld searched the car in which § 87(2)(b)

§ 87(2)(b) was an occupant.

It is undisputed that PO Bernfeld searched § 87(2)(b)'s car. § 87(2)(b) alleged that PO Bernfeld entered his car through the front and rear doors on the driver's side, and "searched" it. § 87(2)(b) stated that he could not see the specific areas that PO Bernfeld searched. § 87(2)(b) stated that he informed PO Bernfeld that § 87(2)(b) can take his car before PO Bernfeld searched it.

§ 87(2)(b) stated that she believed that it was PO Storz who entered § 87(2)(b)'s car and did so through the rear driver's side door. § 87(2)(b) stated that PO Storz lifted a jacket on the backseat, opened a plastic shopping bag, and moved cleaning supplies on the floor of the backseat. § 87(2)(b) believed that PO Storz then entered § 87(2)(b)'s car through the driver's door and opened the arm rest and took out a knife that was inside of a fabric holster. § 87(2)(b) stated that after the knife was found, PO Storz asked her if she can drive. § 87(2)(b) stated that when she exited the car, PO Storz reached underneath § 87(2)(b)'s driver's seat with his hand.

PO Bernfeld admitted to searching the center console and under the driver's seat of § 87(2)(b)'s car because he believed that he was going to have to take the car back to the stationhouse. As a result, PO Bernfeld recovered § 87(2)(b)'s knife in the center console. PO Bernfeld stated that he asked § 87(2)(b) if she can drive § 87(2)(b)'s car after conducting the search.

PO Storz believed that PO Bernfeld entered the front passenger's door of § 87(2)(b)'s car. PO Storz stated that PO Bernfeld then returned to the police car with a knife found inside § 87(2)(b)'s car but did not know where the knife was found. PO Storz did not observe PO Bernfeld open either the glove compartment or center console. PO Storz stated that neither PO Bernfeld nor himself reached under § 87(2)(b)'s driver's seat at any point.

PO Blackburn was not present during the incident.

§ 87(2)(b) "believed" that PO Storz searched § 87(2)(b)'s car. However, § 87(2)(b) and PO Bernfeld each stated that PO Bernfeld searched the car. PO Bernfeld stated that PO Storz remained by the police car while he searched the car. PO Storz stated that he remained by the police car when PO Bernfeld entered § 87(2)(b)'s car and recovered a knife. Therefore, PO Bernfeld searched § 87(2)(b)'s car.

In New York v. Kendall Francis and Arthur Thomason, 12 Misc. 3d 781, 819 N.Y.S.2d 393 (Supreme Court of New York 2006), the court held that "the police were not authorized to impound the car and conduct an inventory search in the absence of proof that the car itself was

linked to criminality or was involved in an accident and especially since the operator produced proof of registration and insurance and the passenger had a valid driver's license” (encl. i-iii).

§ 87(2)(g)

§ 87(2)(g)

Therefore, it is recommended that Allegation A be **substantiated**.

Team: _____

Investigator: _____
Signature Print Date

Supervisor: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date

Reviewer: _____
Title/Signature Print Date